



Tort Law (9th edn)

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4. Special duty problems: Omissions and acts of third parties

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<https://doi.org/10.1093/he/9780198925231.003.0004>

Published in print: 15 August 2025

Published online: August 2025

Abstract

This chapter examines the two separate but closely linked concepts of liability for omissions and for the actions of third parties. The first section considers when and why the courts have established that a duty of care should be owed by defendants when the harm was the result of their omission, and the second explores the situations when a defendant may owe a duty in relation to the action(s) of a third party. Ordinarily you can be liable only for things that you do, but when someone *does not* do something that they *ought* to have done a duty might be found. Similarly, while it appears odd that someone may be liable for harms that someone else caused, the courts have nonetheless found that in limited circumstances people who have responsibility for, or control over, others may incur a duty in respect of the harms caused by these third parties.

Keywords: tort law, duty of care, liability for omissions, third party, assumption of responsibility, reliance

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

Margaret, who is 75, is in the supermarket on a busy Saturday afternoon when she feels pains in her chest. It transpires she is having a heart attack and she collapses to the floor. Although the supermarket is crowded, no one comes to help her.

Amir, the store manager, puts a call out over the PA system asking if there is a doctor present, but otherwise offers no assistance. Hearing the announcement, Kasim, a nurse, comes forward and tries to help Margaret, but he fails to put her in the recovery position. Margaret later dies.

Meanwhile, some youths see Margaret's car, which was left unlocked and with the key still in the ignition in the supermarket car park as she did not want to spend time looking for a parking space. The youths drive off in the car, failing to stop at a pedestrian crossing, hitting Jill and her daughter Heather who were crossing the road. Both are injured, Heather seriously. One of the youths, Levi, who was not wearing a seat belt, suffers a serious head injury.

Advise the parties.

p. 77 4.1 Introduction

Consider the following situations:

- *A small child falls into a pond and is struggling to get out. A passing adult offers no assistance.*
- *A couple hire a motorboat at the seaside and are clearly in difficulties when the boat begins to sink. The hire shop owner sits on the beach and does nothing to help them.*
- *A doctor is driving along a road on which there has been a bad accident, but does not stop to help the victims.*
- *A man sees another man about to walk off the edge of a cliff, but does nothing to try and stop him.*
- *The door to a pub is left open one night by the cleaner. Some teenagers enter, consume a large amount of alcohol and cause lots of damage.*
- *The same teenagers, upon leaving the pub, vandalise a car belonging to a neighbour of the pub.*

In each scenario above the harm suffered by the various individuals is attributable to a 'third party' or occurred because the potential defendant did *not* do anything (as opposed to doing something that causes harm). It might seem logical that the defendant should incur no liability in any of these situations. As in all negligence claims liability here depends, first, on whether a duty of care was owed to the person injured. For example, we ask 'Does an adult walking past a drowning child owe that child a duty of care?' Whether a duty is owed by one party to another to whom they cause harm often depends on the *manner* in which that harm was inflicted. Generally, there is little problem establishing a duty to avoid the direct infliction of physical harm. However, when harm is inflicted indirectly, such as through a *failure* to act (what the law calls an omission, or nonfeasance), or where the immediate cause of the harm was the act of a third party (someone other than the claimant or defendant), it becomes more difficult to establish that a duty would—or *should*—be owed.

This chapter considers two problematic duty areas. The first section considers when and why the courts have established that a duty of care should be owed by defendants when the harm was the result of their *omission*, while the second explores the situations when a defendant may owe a duty in relation to the *act(s) of a third party*. It might be thought strange that someone would ever compensate someone else for a harm that was not the result of their own actions. This is the stance the courts have generally taken: ordinarily you can be liable only for things that you do, not things you do not do. However, when someone *does not* do something that they *ought* to have done—perhaps because of the relationship between the parties concerned—a duty might be found. Similarly, while it appears odd that someone may be liable for harms that someone else caused, the courts have nonetheless found that in limited circumstances people who have responsibility for, or control over, others may incur a duty in respect of the harms caused by these ‘third parties’.

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4.2 Acts and omissions

Although Lord Atkin in *Donoghue v Stevenson* [1932] spoke of a duty of care arising in respect of ‘acts or omissions’,¹ later interpretations suggest that he only meant omissions in situations where a *pre-tort* relationship gives rise to a positive obligation to act (and, therefore, where inaction would be a breach of that duty). This, broadly, is the law’s position today. A pre-existing relationship between the parties—for example, between parent and child, or school teacher and pupil, and contractual relationships or those created by statute—may create a positive duty to act.² Outside specific pre-tort relationships, positive duties are not generally present in the tort of negligence and the courts seem unwilling to create them—most likely because negligence law developed against a social and political landscape that favoured individualism over collective responsibility.

In short, the exclusionary rule operates to prevent a duty being owed in respect of omissions. Lord Goff stated in *Smith v Littlewoods* [1987] that ‘the common law does not impose liability for what are called pure omissions’ (at 271). If no duty exists, there can be no liability, so no compensation for harm(s) caused by the failure of someone to do something. Generally speaking, the duties of care that arise in negligence are duties not to cause harm to others by our actions. These do not extend to positive duties to act to help others (or even to try), even when to do so would be easy. An example commonly cited in this respect (including in our chapter-opening scenarios) is that of a child lying face down in a puddle of water and potentially drowning. A passing stranger has no duty to take any steps to save that child, even if all it would take would be for them to grab the child’s arm and pull them out of the water to safety. The principle is starkly illustrated by the US case *Osterlind v Hill* [1928]. In that case, the claimant rented a canoe from the defendant and took it out into the water. The canoe overturned and the defendant, who was a strong swimmer, did nothing: he sat on the shore and watched the claimant drown. When sued in negligence it was found that he owed no duty of care, despite the fact he had rented out the canoe.³

Pause for reflection

Many people are shocked that the adult in the scenario described earlier would have no duty of care towards the child. Should this be the case, in your opinion? Do you think that the way the law operates might actually discourage people from going to the assistance of others? Allen Linden, a Canadian scholar, points out that this rule is ‘particularly incomprehensible in an age when everyone carries a cell phone and can call for help without any risk whatsoever to him- or herself’.⁴ Do you agree?

p. 79 ↪ It is the ‘pure’ notion of omissions that concerns us here; that is, not those omissions which happen in the context of a relationship in which an obligation to act arises. In some circumstances, there *would* be a duty to go to the rescue of the child in a puddle—if there was a pre-tort relationship that meant a duty to take positive action existed, such as if the parent or carer of the child was the person walking by,⁵ or if the defendant had in some way ‘assumed responsibility’ for the claimant.⁶ This general exclusion of liability for ‘pure’ omissions has been restated many times in case law—most notably by Lord Hoffmann in *Stovin v Wise* [1996]:

There are sound reasons why omissions require different treatment from positive conduct. It is one thing for the law to say that a person who undertakes some activity shall take reasonable care not to cause damage to others. It is another thing for the law to require that a person who is doing nothing in particular shall take steps to prevent another from suffering harm from the acts of third parties ... or from natural causes. (at 943)

He goes on to identify political, moral and economic reasons why no duty should be owed in such circumstances:

In political terms it is less of an invasion of an individual’s freedom for the law to require him to consider the safety of others in his actions than to impose upon him a duty to rescue or protect. A moral version of this point may be called the ‘Why pick on me?’ argument. A duty to prevent harm to others or to render assistance to a person in danger or distress may apply to a large and indeterminate class of people who happen to be able to do something. Why should one be held liable rather than another? In economic terms, the efficient allocation of resources usually requires an activity should bear its own costs. If it benefits from being able to impose some of its costs on other people (what economists call ‘externalities’), the market is distorted because the activity appears cheaper than it really is. So liability to pay compensation for loss caused by negligent conduct acts as a deterrent against increasing the cost of the activity to the community and reduces externalities. But there is no similar justification for requiring a person who is not doing anything to spend money on behalf of someone else. Except in special cases (such as marine salvage) English law does not reward someone who voluntarily confers a benefit on another. So there must be some special reason why he should have to put his hand in his pocket. (at 943–4)

p. 80 ↪ Lord Hoffmann suggests that the rule against liability in the context of pure omissions is an application of the ‘Why pick on me?’ aspect of modern life. After all, why should the burden to go to the assistance of anyone else be placed on one particular person purely because they were in that particular place at that particular time?

Pause for reflection

If several people are in a situation where they *could* prevent someone else from coming to harm, but no one actually does anything, should all of them be potentially liable for failing to help? Or does the fact that so many people *could* have done something indicate that we should not impose a positive obligation on any one of them?

In *Stovin v Wise*, Lord Nicholls refers to these people (who do not help) as ‘callous bystander[s]’ (at 931). However, he continues: ‘something more is required than being a bystander. There must be an additional reason why it is fair and reasonable that one person should be regarded as his brother’s keeper⁷ and have legal obligations in that regard’—do you agree?

While there may be arguments made against a general exclusionary principle in respect of pure omissions, the rule was reiterated by the House of Lords in *Sutradhar v National Environmental Research Council* [2006]. The claimant suffered arsenic poisoning after drinking water from an irrigation well, which had been tested for toxins (but not arsenic) on behalf of the British Government by the British Geological Survey (BGS). The claimant asserted that BGS had a duty to test for arsenic (particularly as arsenic-contaminated water was a major environmental problem, affecting 35–77 million of Bangladesh’s inhabitants). The law lords held that no duty was owed in respect of BGS’s omission to test for arsenic. Indeed, Lord Hoffmann found that ‘BGS owed no positive duties to the government or people of Bangladesh to do anything. They can only be liable for the things they did ... not for what they did not do’ (at [27]).

Wrongly not doing something that you should have done (an omission or nonfeasance), is to be contrasted with wrongly doing something (an act or misfeasance). Whether a case is one or the other depends either on the nature of the relationship between the claimant and defendant or the activity being undertaken and is closely linked to the notion of proximity (or closeness of relationship) that threads through all aspects of the duty question and in particular the so-called ‘problematic’ duty areas.

p. 81 The courts have even found that there is no duty to go to the rescue of another who is about to injure themselves accidentally, or even to shout to warn them: as Lord Keith said in *Yuen Kun Yeu v Attorney General of Hong Kong* [1988], there will be no liability ‘on the part of one who sees another about to walk over a cliff with his head in the air and forbears to ↪ shout a warning’ (at 192).⁸ This stands in direct contrast to most civil law jurisdictions, in which such a duty is workably imposed upon citizens, even in relation to strangers. Article 223–6 of the French *Code Penal*, for example, makes it a *criminal* offence not to try to assist someone in danger (as long as doing so would not mean taking undue risks to your own safety), which also translates

into a civil obligation (and therefore potentially liability) when this does not occur.⁹ In the UK, only when someone does act (i.e. they begin to attempt a rescue) does a duty become attached to them—they become obliged not to make the (claimant's) situation worse than it already was.¹⁰

Pause for reflection

Consider how a duty to rescue *could* work in practice in relation to the example of the drowning child. What would such a duty actually *consist* of? Would it be a duty *to save* the child or a duty *to try to save* the child by taking reasonable (but not dangerous) steps? Do you think there is a good reason why we should not owe this kind of duty? In any case, could we protect people from liability if they did try to help—by statute, for example? A number of US, Canadian and Australian states and territories have passed what are called 'Good Samaritan' statutes which provide those who try to help with an 'immunity from suit' (i.e. they cannot be sued for any consequences of trying to help).¹¹ Do you think the same should happen here?

The UK's Social Action, Responsibility and Heroism Act 2015 perhaps goes a little way towards this. While it does not create a *duty* to go to another's assistance where no duty previously existed, it impels the court, when considering whether any person who does so was in *breach* (i.e. fell below the expected standard of care), to consider that person's 'social action' (s 2) and/or 'heroism' (s 4). Though not providing 'immunity from suit', the Act may protect some of those who offer assistance. Whether what the Act contains is any different from existing common law principles that courts have always considered, is another question (see further **section 8.5**).

p. 82 The rule that says that you are *not* obliged to go to someone's aid, even when it would be easy to do so, surprises many law students. It also lies behind what we may term 'rescuer anxiety'. Many people faced with a situation in which they *could* intervene to help someone are often scared to, fearing that *if* they help, they may end up becoming liable for not being able to ↵ protect/save the person. In fact, this fear reflects an inaccurate understanding of the law. One can only be liable, once stepping in to help, for positive actions that make the situation worse than it was before the intervention. *Liability*, however, is different from owing a duty of care. Liability simply means having legal responsibility for one's actions and only attaches once *all* the elements of a tort are made out by the claimant. So, for example, while someone who intervenes may owe a *duty* not to make the situation worse, their actions would still be judged against those of a 'reasonable person' in the circumstances (and so if a reasonable person would have tried to save the child in the same way, there will be no *breach* of duty and therefore no *liability* to pay compensation).

Pause for reflection

If there was a duty to try and help, what would someone have to do to breach that duty? Failing to do anything at all might be a breach but this will depend on the circumstances. For example, say you walk down the high street late at night and happen to witness a mugging. If a general duty to rescue existed, your duty would be to try and do something to help, *if you can*—the least you could do is try to call the police or alert other people to what's happening—you would *not* have to take steps to stop the mugging yourself, as this may put you in danger. Why shouldn't this kind of duty be imposed on people? What does it say about our society and its values that such a duty is not imposed?

All this said, there are—as ever—some limited exceptions to the general exclusionary rule. These fall under three general headings:

- (1) control;
- (2) assumption of responsibility;
- (3) creation (or adoption) of risks.¹²

In one way or another, these exceptions increase the degree of proximity between the claimant and defendant, creating a relationship between them in which the foreseeability of harm becomes greater, therefore justifying the defendant's potential liability to that specific claimant for *not doing something* that they could or should have done.

4.2.1 Control

When we speak of control in this sense, we mean those situations where it is arguable that the defendant *should* owe a duty to the claimant *because* they exercise a high degree of control over them, or have express responsibility for them. A parent or carer of a small child, for example, has a sufficient degree of control over/ responsibility for their child such that they *ought* to step in to try and help them if they were drowning in a pool of water.¹³ However, this exception also extends to situations where it can be said that the defendants, because they exercise control over the person harmed, owe them a positive duty to take steps to ensure they are not harmed by themselves or by anyone else. In so doing, it clearly overlaps in part with the 'assumption of responsibility' category, discussed in the next section.

An example can be seen in *Reeves v Commissioner of Police for the Metropolis* [2000].¹⁴

***Reeves v Commissioner of Police for the Metropolis* [2000] 1 AC 360 (HL)**

A man called Martin Lynch committed suicide while in police custody. His partner claimed that the police had owed him a duty to prevent this from happening. Previous case law (see *Kirkham v Chief Constable of Greater Manchester* [1990]) had established that a duty of care was owed in respect of suicide attempts of prisoners known to be mentally ill, but a doctor had found Mr Lynch to be of sound mind. The police, who clearly owed him a duty of care not to physically harm him by their actions, argued that they owed him no duty of care in respect of his suicide because he was not mentally ill, and had deliberately taken his own life, even though the opportunity for him to do so had only arisen from their own carelessness.

A majority of the House of Lords disagreed, holding that the police's duty to prisoners in custody *did* extend to a positive duty to take reasonable steps to assess the suicide risk of all prisoners. This was justified by the degree of *control* exercised over prisoners in custody and the known (high) risk of suicide, even among those without a known mental illness. However, the court also considered the deliberate nature of the prisoner's actions, finding him partially responsible for his own death. The damages awarded were consequently reduced by 50 per cent.¹⁵

In a later case also involving a suicide in police custody, it was held that *Reeves* did not mean that the police have a duty of care requiring them to treat *all* prisoners as a suicide risk. In *Orange v Chief Constable of West Yorkshire Police* [2001], a man committed suicide by hanging himself with his belt from a grille on the door in a police cell after being arrested and detained for being drunk and disorderly. His widow claimed that the police had owed a duty to take away any means of suicide from him, such as his belt, and that they should have watched him more carefully. The Court of Appeal held that the duty from *Reeves* was only to take reasonable steps to *assess* whether a prisoner posed a suicide risk, and to act accordingly. As the police had no real reason to think that this particular prisoner would attempt suicide, the duty did not arise in this case. This distinction was later approved by the European Court of Human Rights in *Keenan v UK* [2001].¹⁶ In *Savage v South Essex Partnership NHS Trust* [2008], the House of Lords found that a similar positive duty, based on Article 2 ECHR, was owed to a patient detained in a mental hospital who had negligently been allowed to abscond, later committing suicide.¹⁷

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Pause for reflection

Despite their differing outcomes, the facts of *Reeves* and *Orange* are very similar. Considering what we have said about the concept of duty being used as a 'control device', could it be argued that the Court of Appeal in *Orange* was seeking to 'put the brakes on' what could potentially be an expanding

category of liability? Is it realistic to expect the police to owe a duty to all prisoners in their custody (and therefore under their control) to prevent them from attempting suicide? If not, why not? What positive obligations would this impose on the police, and are they unreasonable?¹⁸

Arguably, because the risk of suicide in custody is known to be high, the police should monitor all prisoners, even those without a history of mental illness (especially when they are first admitted), should design cells to minimise the risk of suicide and should remove items from prisoners (e.g. belts) that they could use to harm themselves. However, this must be balanced against the resources and time available to the police and a respect for the judgements they make in relation to who is at risk and who is not. Imposing an undue burden on the police to constantly monitor every prisoner might detract from their other functions. Again, however, it is important to note that imposing a duty of care is not enough to establish *liability* in the tort of negligence. We might again ask what such a duty would *consist* of—would it be a duty to prevent all suicides in custody or merely a duty to take reasonable steps to try to ensure that prisoners do not commit suicide? Consider *Nyang v G4S Care & Justice Services Ltd and others* [2013], where, despite there being a duty in respect of the many omissions in relation to the care and assessment of the detainee claimant, his case failed because those omissions were deemed not to have *caused* his suicide.

4.2.2 Assumption of responsibility

As already stated, this category has obvious links with ‘control’. When the defendant can be said to have ‘assumed responsibility’ for the claimant’s wellbeing or safety, it seems obvious that positive obligations (in the form of a duty of care) should arise. The most common types of assumed responsibility (as opposed to more naturally arising relationships of responsibility, such as parent/child, which are better thought of as falling into the ‘control’ category) are those that arise out of a contract or from employment relationships.

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***Costello v Chief Constable of Northumbria Police* [1999] 1 All ER 550 (CA)**

A female police constable was attacked by a prisoner in a cell. Despite her calls for help, a police inspector in the vicinity did not come to her aid. Costello alleged that the police inspector owed a duty to assist a fellow officer when in trouble.

The Court of Appeal agreed. Police officers assume a responsibility to one another to ‘watch each other’s back’. Where a police officer’s omission might lead to avoidable harm being suffered by a fellow officer, a positive duty to act would be imposed. Thus, in failing to act, the police inspector had breached that duty and the Chief Constable was vicariously liable.¹⁹

Another way that someone can assume responsibility for the wellbeing of someone else is by their actions. Put another way, *what* someone does in relation to someone else can indicate, by conduct, an assumption of responsibility. A clear example of this is seen in *Barrett v Ministry of Defence* [1995].

***Barrett v Ministry of Defence* [1995] 1 WLR 1217 (CA)**

A naval pilot stationed on a remote Norwegian base where extreme drunkenness had become commonplace had been celebrating his 30th birthday and a promotion when he became so drunk that he collapsed. The officer on duty ordered that he be taken to his bed—however, no one stayed to watch over him and he later choked to death on his own vomit.

At first instance, it was ruled that the senior officers had breached their duty to prevent irresponsible drinking on the base, but the damages to be awarded would be reduced by 25 per cent to account for Barrett's own contributory negligence.

The Court of Appeal agreed. However, to them, the senior officers' duty (and, through the doctrine of vicarious liability, that of the Ministry of Defence) was not owed in relation to the failure to prevent or discourage excessive drinking, as the court believed that adults should take responsibility for themselves in this respect. Rather, the duty was owed in relation to the duty officer's failure to have someone stationed to watch Barrett while he slept (a different omission) because, by that point, responsibility for his safety had been assumed:

[i]n the present case I would reverse the judge's finding that the defendant was under a duty to take reasonable care to prevent the deceased from abusing alcohol to the extent he did. Until he collapsed, I would hold that the deceased was in law alone responsible for his condition. Thereafter, when the defendant assumed responsibility for him, it accepts that the measures taken fell short of the standard reasonably to be expected. It did not summon medical assistance and its supervision of him was inadequate. (Beldam LJ at 1225)

The Court of Appeal also considered that more responsibility for his death lay with the deceased than with the officers, and reduced his damages by two-thirds.

Counterpoint

On closer inspection, the *ratio* of *Barrett* suggests that had no one found the naval officer when he was drunk or—more specifically, as this is what the case turns on—taken him back to his room, no one would have assumed responsibility and therefore no duty of care would or could have arisen. Can this be right? What this means is that had he fallen unconscious outside and been left to freeze to death, either because he had not been found or because whoever did see him chose to ignore his plight and

walk past (a ‘pure’ omission), no duty of care would have been owed. Would it be better to say that this was a situation in which the superior officers had ‘control’, and therefore *should* have done what they could to prevent excessive drinking? Or is it right that individual responsibility is taken into account *only until the point when someone else intervenes*?

4.2.3 Creating or adopting risks

The final exception in relation to omissions is based on the creation or adoption of a risk. When a defendant—even accidentally—creates a dangerous situation, a positive duty to try and deal with that danger may be imposed. In *Capital & Counties plc v Hampshire County Council* [1997], it was found that a fire service will only owe a duty to a property owner when it creates the danger in the first place or where its positive actions upon responding to an emergency make the situation worse. In this case, the county council was vicariously liable for the fire chief’s decision to turn off a sprinkler system on the claimant’s property, thereby allowing the fire to spread more rapidly than it would have had the sprinkler system still been operational. This general point flows through the law on omissions.²⁰

More recently, in *Tindall v Chief Constable of Thames Valley Police* [2024], the Supreme Court refused to find a duty after police officers who had responded to a traffic accident in which a car had skidded on a patch of black ice, crashing and injuring the driver, removed a warning sign upon leaving the scene, resulting in a further traffic accident on the ice which killed the claimant. Though the officers’ ‘ineffectual’ intervention was considered by the court to be a ‘serious dereliction of their public duty owed to society at large’ (at [20]), this did not translate into an individual duty of care owed to *the claimant*, as the police had not made ‘matters worse by acting in a way that creates an unreasonable and reasonably foreseeable risk of physical injury’ to him (at [56]). Their failure to leave the warning sign was an omission to which no duty could attach.

Watch our video ‘But they’re meant to protect us!’ where we discuss the different approaches the courts have taken to claims against the police, and whether these can be justified.

Video playback is not supported in this format.

Video 4: But they’re meant to protect us!

In terms of ‘adopting’ risks, *Goldman v Hargrave* [1967]²¹ illustrates a similar idea. Here, a tree caught fire after being struck by lightning. The landowner ensured that the tree was cut down, but decided to let it burn itself out and took no further precautions to prevent the fire spreading. Therefore, although he did not cause the fire, in taking no further steps to completely extinguish it he adopted the risk of it spreading (in a similar way to assuming responsibility for someone else he had, in a sense, assumed responsibility for the

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risk). Extensive damage was caused to a neighbouring property after the fire was revived by the wind. The Privy Council found that a duty of care was owed in relation to adopted dangers on one's land when that danger could spread to a neighbour's land.

4.2.4 Summary of when a duty of care may be found in respect of omissions

This is summarised in Table 4.1.

Table 4.1 When a duty of care may be found in respect of omissions

Duty of care	
General rule: no duty of care	Exceptions:
<i>Smith v Littlewoods</i> [1987]	Control exercised over claimant by defendant
<i>Stovin v Wise</i> [1996]	<i>Reeves v Commissioner of Police for the Metropolis</i> [2000]
<i>Sutradhar v National Environmental Research Council</i> [2006]	Assumption of responsibility for claimant's welfare by defendant
	<i>Costello v Chief Constable of Northumbria Police</i> [1999]
	<i>Barrett v Ministry of Defence</i> [1995]
	Creation or adoption of a risk
	<i>Capital & Counties plc v Hampshire County Council</i> [1997]
	<i>Goldman v Hargrave</i> [1967]

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-4-2>>.

4.3 Liability for acts of third parties

4.3.1 The general rule

There is no general duty to prevent other people causing damage. After all, why should someone owe a duty of care in respect of harm inflicted on another by a third party? Again, however, there are exceptions to this general rule, many of which relate to and overlap with those already discussed in the context of omissions, and stem from either a special or pre-tort relationship. For example, it is often because someone has not done something (an omission) that allows a third party the chance or opportunity to do something that they

otherwise might not have done, this being what leads to the harm suffered.²² The question for the courts is similar—in what circumstances should we depart from the general rule that people should not be liable for the actions of third parties?

p. 88 4.3.2 When is there liability for the acts of third parties?

The law imposes liability for the acts of third parties in exceptional circumstances. In such circumstances, one of the logistical problems that might have been encountered—in relation to when or whether a defendant should be liable for the actions of someone else—is broadly met by the *content* of the duty being a ‘duty to control the third party’ or a ‘duty to safeguard a dangerous thing’. However, this does not prevent there being causation problems—as we will see, a later act of a third party may actually operate to break the chain of causation back to the defendant (or may affect what damages can be paid if thought to be a supervening, rather than intervening event).²³ There is a very fine line between the consideration of a third party’s actions as a duty issue or a causation issue and often the questions we ask are part and parcel of the same thing.²⁴ Some guidance can be gleaned from Lord Reid in *Home Office v Dorset Yacht Co Ltd* [1970] where he said that an act of a third party:

must have been something very likely to happen if it is not to be regarded as a *novus actus interveniens* breaking the chain of causation. I do not think that a mere foreseeable possibility is or should be sufficient, for then the intervening human action can more properly be regarded as a new cause than as a consequence of the original wrongdoing. (at 1030)²⁵

Lord Goff (in *Smith v Littlewoods* [1987]) suggested that a duty in respect of a third party’s actions can arise in four circumstances:

- (1) where there is a special relationship between the defendant and the claimant;
- (2) where there is a special relationship between the defendant and the third party, such as a relationship of control or supervision;
- (3) where someone creates a ‘source of danger’ that may be ‘sparked’ by a third party;
- (4) where there is a failure to take steps to abate a known danger created by a third party.²⁶

Test your understanding by trying this section’s self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-4-3>.

4.4 Exceptional circumstances

We will look in turn at examples from each of the categories Lord Goff suggested.

4.4.1 A special relationship between defendant and claimant

p. 89 Where the defendant and the claimant have a special (pre-tort) relationship, that is a relationship in which a sufficient degree of proximity, or an assumption of responsibility, can be found to justify the imposition of a duty of care from one to the other, a duty may arise in relation to the activities of a third party. Such a relationship may be defined by a contract between the parties. For example, in *Stansbie v Troman* [1948], the claimant employed the defendant to decorate her premises. When she went out, she specifically requested that the decorator lock up after himself when he left. He failed to do so and she was subsequently burgled. The court found that the contractual relationship between them was enough to create the necessary proximity for the imposition of a duty on the defendant. Put simply, because of the relationship between them, he had a duty to lock the premises when he left to prevent a burglary by a third party.²⁷ In a more recent case, the owners of a London hotel were found to have assumed responsibility for their guests' safety—even in the context of a violent overnight robbery committed by a third party who had entered the hotel for that purpose.²⁸

Compare, however, *P Perl (Exporters) Ltd v Camden London Borough Council* [1984]. Here, two adjoining buildings were owned by Camden Council, one of which was leased by the claimant—the other was empty and ununlockable. Thieves entered the unlocked premises, made a hole in the wall separating the two buildings and burgled the claimant's property. The Court of Appeal found that the council owed no duty in respect of the third parties' (the burglars') actions. Despite it being foreseeable that some harm might be caused by leaving their property unlocked, this was not enough to establish the necessary proximity between the defendant and the claimant.

Notably, however, this case falls into a clear group of cases in which property owners were not found—for various reasons—liable for the actions of third parties. This suggests that there may be underlying policy reasons for such decisions, not least the fact that property-owning claimants might be expected to have insurance.²⁹ However, presumably, *all* property owners might be expected to be insured, meaning that there are equally valid competing policy reasons in these cases.

The requisite proximity may also stem from an express or implied undertaking made by the defendant to the claimant. In such circumstances—for example, where the defendant promised not to do something that may endanger the claimant in some way—it seems appropriate that a duty should arise. In *Swinney v Chief Constable of Northumbria Police* [1997], the Court of Appeal found that the police owed a duty of care not to leak confidential information about the claimant, a police informant, because she may be harmed by those about whom she had given information. Such undertakings can also be implied, as in *Costello* where it was found that one police officer has a duty to assist another if they come under attack from a third party in police custody.

p. 90 However, it is also evident that there must be a *direct* undertaking by the defendant for a duty to arise in these circumstances. In a string of police cases including *Hill v Chief Constable of West Yorkshire* [1989], *Osman v Ferguson* [1993] and *Michael v Chief Constable of South Wales Police* [2015], for example, no duty was owed by police to claimants who were victims of crimes committed by third parties. In these cases, there was a general duty to the public at large, but no duty existed to protect specific claimants, as no promise—express or implied—had been made.³⁰

The idea that there must indeed be a specific undertaking is clearly seen in *Palmer v Tees Health Authority* [1999].

***Palmer v Tees Health Authority* [1999] Lloyd's Rep Med 351 (CA)**

Mrs Palmer alleged that the defendant health authority had been negligent in its assessment of a mentally ill patient—Armstrong—who kidnapped, sexually assaulted, killed and mutilated her 4-year-old daughter Rosie upon his release from a secure unit. While under treatment for his illness, Armstrong stated that he had sexual feelings towards children and threatened to abduct and murder a child. Post-release, he failed to attend an outpatient's appointment.

The Court of Appeal, relying on *Hill*, found that the health authority owed neither Mrs Palmer nor Rosie a duty of care, as the necessary proximity between the parties did not exist. The child was not identifiable as a potential victim (like in *Hill*), meaning the health authority could have done nothing to prevent her murder, other than keep the patient detained. There was no special relationship that could give rise to a duty of care.

In his judgment in *Palmer*, Stuart-Smith LJ said that 'once rules are established, it is not open to the courts to extend the accepted principles of proximity simply because the facts of a given case are particularly horrifying or heart-rending' (at 7). Nevertheless, it appears strange to us that the requisite proximity could not be found—or was not even argued on appeal—from the fact that Rosie lived in the same street as Armstrong.³¹

Following *Palmer*, it was argued in *K v Secretary of State for the Home Department* [2002] that in situations where 'exceptionally serious' risks are posed by a known third party, sufficient proximity could exist between an injured claimant and a defendant whose negligence fails to prevent the harm occurring. Here a Kenyan man, who had been imprisoned for several violent crimes and was due to be deported, was released early by the Secretary of State. The claimant, who was subsequently raped by the man, sued the Secretary of State alleging that the decision to release him early was negligent, as he posed a known risk of committing a violent crime. The Court of Appeal found that because the victim was unidentifiable to the defendant, there was no relationship of proximity between them, following *Hill* and *Palmer*, and this was not changed by the seriousness of the risk, even where it was clearly known by the defendant that such a risk existed.

Pause for reflection

Do you think it is right that the claimants in cases like *Palmer* and *K* have no cause of action? Where a psychiatric patient makes known his wish to harm a child, *should* he be released? *Why* was the criminal in *K* released before deportation? Surely both men did 'the very thing that was ↵ likely to

happen' upon their release? As we have seen from Lord Reid in *Dorset Yacht*, this is, in different circumstances, enough to create a duty.³² We would argue that simply because there was no undertaking between the defendant and the claimant, this should not mean that the claimants in cases like *Palmer* and *K* must fail. The crimes committed were just as severe, and the defendant's negligence just as intense, as they would have been if the criminal had told the defendant who he was intending to attack. Arguably, also, preventative measures would have been easy to take in each of the cases.

In any case, as we see from *Osman v Ferguson*,³³ even where the victim is clearly identifiable (thus creating the requisite proximity), a positive duty to act may not arise for policy reasons. What policy reasons exist in relation to these cases?

The principle that a duty of care will not exist even where a potential victim is known to the defendant unless a specific undertaking has been given was underlined by the House of Lords in *Mitchell v Glasgow City Council* [2009]. Mitchell, a 72-year-old man, was beaten and killed with a stick or iron bar by his 60-year-old neighbour, Drummond. Both were tenants of the defendant, which had long been aware of Drummond's anti-social and hostile behaviour, including death threats made to Mitchell. Having issued many previous warnings, a further serious incident made the defendants summon Drummond to a meeting, where he was threatened with eviction if his anti-social behaviour continued. Leaving the meeting angry, Drummond returned home and attacked Mitchell. Acting on his behalf, Mitchell's widow contended that the council owed a duty of care to inform him the meeting had taken place and warn both him and the police of the potential danger. The law lords found that the council owed Mitchell no duty of care:

[a] duty to warn another person that he is at risk of loss, injury or damage as the result of the criminal act of a third party will only arise where the person who is said to be under that duty has by his words or conduct assumed responsibility for the safety of the person who is at risk. (Lord Hope at [29])

Given the high degree of foreseeability of harm, coupled with the council's proximate relationship (to both the claimant and the third party), as well as what *looks like* assumption of responsibility, it is not apparent to us that this is a clear-cut case where no duty should be owed.³⁴ More recently, in *Poole Borough Council v GN* [2019],³⁵ the Supreme Court found that, despite knowledge of serious anti-social behaviour and violence from a neighbouring family towards the (child) claimants in council-arranged housing, this did not amount to an assumption of responsibility. Therefore, the council had no duty to protect the claimants from foreseeable harm. In contrast is the Court of Appeal decision in *Selwood v Durham County Council and others* [2012]. Here, a psychiatric patient threatened to kill the claimant social worker if he came into contact with her, though she was not informed of this threat. When she attended a case conference dealing with one of the patient's children, he stabbed her repeatedly. At first her claim was struck out, the decision relying in part on *Mitchell*. However, the Court of Appeal unanimously allowed her appeal, finding that assumption of

responsibility need not be express or implied from conduct, it could also be inferred from the circumstances, and that the judge failed to consider whether the defendants' policy document³⁶ and/or working arrangements inferred such an assumption.

Michael v Chief Constable of South Wales Police [2015] (discussed in detail at section 6.3.1) demonstrates the clear overlap between the problematic notions of imposing liability for omissions and for the action of third parties. Counsel for the claimant had raised an exception to the general rule on omissions as one ground of appeal, arguing that the police could be said to have assumed responsibility for Ms Michael's safety after the first 999 call, in respect of the third party, thus owing her a duty of care.

Lord Toulson, giving the leading judgment, retreats into the long line of established authorities in this area and notes the exceptions of 'control' and 'assumption of responsibility' (at [98]–[100]), eventually finding that an assumption of responsibility could not (and should not) be established:

It does not follow from the setting up of a protective system from public resources that if it fails to achieve its purpose, through organisational defects or fault on the part of an individual, the public at large should bear the additional burden of compensating a victim for harm caused by the actions of a third party for whose behaviour the state is not responsible. To impose such a burden would be contrary to the ordinary principles of the common law. (at [114])

Counterpoint

Arguably, collapsing the two areas of law into each other in that way led Lord Toulson to forget that additional exceptions, such as those discussed here, exist in relation to the actions of third parties. It is at least arguable that, as in the cases outlined earlier, a 'special relationship' existed between the defendant and claimant due to the nature of her call and the fact she would obviously rely on the police coming to her aid,³⁷ even if that was not quite enough to amount to a 'true' assumption of responsibility. Being asked by a call handler (having dialled 999 while fearing an imminent violent attack) if she was able to lock the doors, and being told that the call would be passed on to the correct police force is, to us, clear indication that it was *reasonable* for Joanne Michael to rely on the police. Thus, they should have owed her a duty, despite the fact the harm was eventually caused by a third party. Had her call been handled properly, it is unlikely that she would have been killed.³⁸

Lord Kerr (dissenting) said that the logic of the idea—that unless there was an explicit promise by the police coupled with express reliance by Joanne Michael, assumed responsibility cannot arise—must be questioned:

Should someone in a vulnerable state, fearing imminent attack, who *believes that the assurance of timeous assistance has been made* when, through negligence on the part of the police, that impression has been wrongly created, be treated differently from another who has in fact received an explicit assurance of immediate help, if both have relied on what they believed to be a clear promise that police would attend and avert the apprehended danger? (at [165], emphasis added)

It would truly be an invidious distinction if—had the call handler said ‘help is on its way, don’t worry’—a duty of care could be found.³⁹

4.4.2 A special relationship between defendant and third party

Again, when we speak of a ‘special relationship’ in this respect, we are talking about proximity. The more proximate (or close) the relationship between the defendant and the third party who caused the damage or harm, the more likely it is that a duty will be imposed on the defendant in respect of the third party’s actions. As with liability for omissions, proximate relationships in this context include those where there is a degree of control exercised over the third party by the defendant, or where it can be said that the defendant has ‘assumed responsibility’ for the third party’s actions. *Dorset Yacht* illustrates this principle well.⁴⁰

Home Office v Dorset Yacht Co Ltd [1970] AC 1004 (HL)

In this case the court had to consider whether the acts of third parties (young offenders detained on Brownsea Island just off the Dorset coast) broke the chain of causation between the defendants’ carelessness and the damage suffered by the claimants. The defendants, the boys’ supervisors (for whom the Home Office would be vicariously liable), negligently allowed a group of boys to escape and damage the claimants’ yachts moored in the harbour. The supervisory nature of the relationship created the requisite degree of proximity between the defendants and the third parties. Moreover, the damage suffered by the claimants was the direct consequence of this relationship ‘failing’: upon their escape, the boys did the exact thing that ↵ might be expected of them—they attempted to steal a boat to get off the island. The chain of causation was therefore intact and, correspondingly, a duty of care was owed in respect of the boys’ actions. The duty arose because the actions of the boys following their negligent supervision were the thing ‘very likely to happen’ (Lord Reid at 1030).

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Counterpoint

In the previous section we considered the cases of *Palmer* and *K*, where no duty was found on the basis that the defendant–claimant relationship lacked proximity. In our view, however, it is equally arguable that those cases fit into the category of a special relationship (based on control or assumption of responsibility) existing between the defendant *and the third party*.

Did the claimants fail to establish a duty only because the cases were looked at the wrong way? We can see no real differences between these cases; if anything, the case in *Palmer* is stronger than that in *Dorset Yacht*. In the former, not only was the psychiatric patient still under the care of the health authority as an outpatient but he had expressed a *specific* wish to harm a child.

In *Palmer*, no proximity was found between the defendant and the claimant as there had been no assumption of responsibility towards the victim, who was merely one member of a class of people who might be at risk. Was this the right question to ask, given Lord Goff's four exceptions to the general exclusionary rule for third party liability? Is it better to ask whether the defendant assumed responsibility for the conduct of (or the danger posed by) *the third party*?

Consider the Canadian case *Doe v Metropolitan Toronto (Municipality) Commissioners of Police* [1998], where the court found that a woman was owed a duty of care by the police in respect of her rape. She was one of many women in the potential target group of a serial rapist, who operated in a particular area of Toronto and was known as the 'Balcony Rapist' because he preferred to break into women's flats via balconies. Potential victims were neither warned nor adequately protected owing to several significant failings on the part of the police. Was this case decided differently from *Palmer* and *K* because the woman was in a smaller and more readily identifiable group of potential victims? If so, how few potential victims need there be before it can be said a duty would be owed to each of them? In *Palmer*, it should be remembered, the victim lived on the same street as the man who killed her. How difficult would it have been to warn parents of children in the area? Or, if this is not the appropriate response, what else could the health authority have done? In our opinion, the fact that the claimant in *Palmer* could have been classified in a smaller group of potential victims should, like in *Doe*, have weighed more heavily with the court, as it is this feature that marks this case out from a law where the police would owe a duty in respect of all crimes committed by released prisoners and health authorities for psychiatric patients.⁴¹

4.4.3 Creating a source of danger

If a third party's actions exacerbate a dangerous situation originally created by the defendant, subsequently causing the claimant harm, the defendant may owe the claimant a duty of care. For example, in *Haynes v Harwood* [1935], the defendant left his horses untethered on a busy street; they bolted when some children threw stones at them. A police officer was injured trying to control the horses; it was found that the defendant owed him a duty of care, as he had created a source of danger that was 'sparked' by the third parties.

For a duty to arise in these circumstances, a special risk must be created. In *Topp v London Country Bus* [1993], the defendant's employee left an unlocked minibus unattended outside a pub, with keys in the ignition. When the pub closed, a patron entered the minibus and drove it away carelessly, killing a pedestrian. However, the Court of Appeal found that the minibus was no more a source of danger than any other vehicle parked on the road at that time, therefore leaving the minibus did not create the type of risk that would create a duty of care as in *Haynes*.⁴²

Pause for reflection

Is an unlocked bus with the keys in the ignition, left outside a pub at closing time, really less dangerous than an untethered horse? Is the outcome of this case surprising, particularly as the driver/owners of the bus would be insured?

4.4.4 A failure to abate a known danger

In a sense, this is the reverse of the situation outlined earlier. There, we looked at instances where the defendant created a danger that could be 'sparked' by a third party. Here, we consider the situation where the danger is in fact created by a third party, but the defendant does nothing to abate it. The key word here is 'known'; unknown (or unknowable) dangers do not fall into this category. It can be explained as follows: if a defendant knows—or ought to have known—that a third party has created a danger that he *should* do something about (e.g. because it is on his property), then they will owe a duty of care to anyone injured as a result of that danger.⁴³ Put simply, the defendant has a duty to do something about the danger in order to prevent injury (to person or property) to others.

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In *Smith v Littlewoods* [1987], the claimant's property was damaged by fire spreading from a derelict cinema owned by Littlewoods after vandals entered it at night and started a fire. The law lords—in particular Lord Goff—found that only where the danger was known, or ↵ foreseeable, would a duty be owed.⁴⁴ On the facts, no such duty was owed as Littlewoods had no reason to suspect the vandals' entry and the only thing they could have done to prevent it would be to hire round-the-clock security, which would be disproportionate to the level of risk. As they had *some* security and had taken some precautions against trespassers, they had done all they reasonably should be expected to do.⁴⁵ In this sense *Smith v Littlewoods* went a long way towards clarifying the law in this area in which liability had previously been judicially controlled using various other aspects of the law of negligence.⁴⁶

In *Clark Fixing Ltd v Dudley Metropolitan Borough Council* [2001], the reasoning from *Smith v Littlewoods* was used to find a duty in exactly the extended circumstances envisaged by Lord Goff. In *Clark*, Dudley Council owned property which shared a roof with an adjoining property owned by the claimant. As in *Smith*, trespassers entered the council's property and started a fire, which spread to the claimant's property, causing substantial damage. The council, unlike the cinema owners in *Smith*, was aware that trespassers had entered the premises—and had started fires—on several previous occasions, and in fact had received complaints

about this from the claimants. The Court of Appeal therefore found that a duty was owed by the council, despite the harm being caused by third parties. Similarly, but without actual knowledge of the risk, a duty of care was found in *Sandhu Menswear Co Ltd v Woolworths plc* [2006], where the defendants had left piles of flammable material by storage units on an industrial estate, which when set alight had caused damage to the claimant's property. Even though in *Sandhu*, unlike *Clark*, there was no evidence that fires had previously been lit by third parties, the court held that it was foreseeable that fires *could* be lit by people trespassing in the area and therefore a duty could be found.

Pause for reflection

As outlined in **Chapter 2**, a claimant has to prove not only that a duty was owed to them but that this was breached and that the breach *caused* the harm suffered by them. How is it possible, however, when the harm is the result of a third party's actions, to establish that the *defendant* was the *cause* of the claimant's harm?

Generally, this causation difficulty is overcome by the *content* of the duty—for example, it will be a 'duty to control a third party' or a 'duty to safeguard a dangerous thing'. When looked at this way, failure to control a third party or a dangerous thing (the breach) *is* what causes the claimant's harm. Do you agree with this statement? And if so, how do we explain cases like *Palmer* or *K*?

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Counterpoint

Claire McIvor calls 'third party liability' a 'novel category of tortious liability' that 'evolved from a collection of disparate and isolated judicial decisions setting out *ad hoc* exceptions to the entrenched common law rules against liability for omissions and liability for the acts of others'.⁴⁷ We agree, adding that the law defining if and when defendants owe a duty of care in respect of either an omission or for the actions of another seems to be based on judicial perceptions rooted wholeheartedly in the concept of individualism. While it may be admirable to suggest that people should only take responsibility for their own actions, this approach does not adequately encompass the fact that in many of the cases we have seen it may be more *morally* justifiable to adopt a broader conception of duty and allow breach to be used as a control on liability. Put simply, we would prefer the approach in these situations to be based on the level of fault or moral blameworthiness that could be attached to the defendant. McIvor is right to contend that due to 'the improvised nature of its development, the current law on third party liability is unstructured, unprincipled and incoherent'.⁴⁸

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-4-4>.

4.5 Summary of when a duty of care may be found for the actions of third parties

This is summarised in Table 4.2.

Table 4.2 When a duty of care may be found for the actions of third parties

General rule: no duty of care	Exceptions (see <i>Smith v Littlewoods</i> [1987])
Proximity between defendant and claimant	
Duty found in <i>Stansbie v Troman</i> [1948] <i>Swinney v Chief Constable of Northumbria Police</i> [1997] <i>Selwood v Durham County Council and others</i> [2012]	But not in <i>P Perl (Exporters) v Camden London Borough Council</i> [1984] <i>Palmer v Tees Health Authority</i> [1999] <i>K v Secretary of State for the Home Department</i> [2002] <i>Mitchell v Glasgow City Council</i> [2009] <i>Michael v Chief Constable of South Wales Police</i> [2015]
Proximity between defendant and third party	
Duty found in <i>Home Office v Dorset Yacht</i> [1970]	But not in <i>Palmer v Tees Health Authority</i> [1999] <i>K v Secretary of State for the Home Department</i> [2002] <i>Mitchell v Glasgow City Council</i> [2009]
Creation of a source of danger	
Duty found in <i>Haynes v Harwood</i> [1935]	But not in <i>Topp v London Country Bus</i> [1993]
Failure to abate a known danger	
Duty found in	But not in

4. Special duty problems: Omissions and acts of third parties

General rule: no duty of care	Exceptions (see <i>Smith v Littlewoods</i> [1987])
	<i>Clark Fixing Ltd v Dudley Metropolitan Borough Council</i> [2001]
	<i>Sandhu Menswear Co Ltd v Woolworths plc</i> [2006]
	<i>Everett v Comojo (UK) Ltd (t/a The Metropolitan)</i> [2011]
	<i>Smith v Littlewoods</i> [1987]

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4.6 Conclusion

In this chapter we have looked at the separate—but closely linked—concepts of liability for *omissions* and for the *actions of third parties*. A general exclusionary rule operates in respect of both. However, as usual, there are exceptions to these rules.

In relation to omissions, a duty of care can be established where the defendant and claimant have a relationship making it appropriate to depart from the general rule. As we saw, such relationships include those where a degree of control is exercised over the claimant by the defendant, that is, where the responsibility for them is explicit, such as parent–child relationships or with people held in custody and who constitute a known suicide risk. They may also be defined by an assumption of responsibility. If the defendant actively assumes responsibility for the claimant’s wellbeing, this will usually be enough to establish a positive duty to act. Finally, we saw that positive obligations may arise in respect of omissions where a risk is created or adopted by a defendant.

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Third party liability is controlled by similar concepts. Relationships between claimants and defendants are also important—the courts require a high degree of proximity before a duty will be imposed. This works in two ways: either there is sufficient proximity between the defendant and the claimant (e.g. as in many contractual relationships) that makes it appropriate for the defendant to be liable when a third party causes harm to the claimant, or there is sufficient proximity between the defendant and the third party. As with omissions, this may come from there being a relationship of control and/or responsibility between the defendant and the third party. Again, in a similar way to liability for omissions, a defendant may be liable for the actions of a third party when they either have created a danger that a third party’s actions might cause harm or have failed to abate a known danger created by a third party.

End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

1 Should a ‘Good Samaritan’ statute be passed in this country? What are the benefits of *not* having one?

2

4. Special duty problems: Omissions and acts of third parties

In each of the following situations consider both whether there *is* a legal duty of care and whether there *should* be:

- (i) Iris, a 2-year-old child, falls into two feet of water. Pablo, an adult, walks by and offers no assistance. Iris drowns. What if Pablo is Iris's father?
 - (ii) While out shopping, Indika's 7-year-old daughter slips out of her hand and runs into the road causing a serious accident.
 - (iii) Chiumbo negligently leaves the door of his fireworks factory unlocked one night. Some children enter the factory and steal a large quantity of fireworks, which they light in the nearby park. This causes an explosion that seriously injures Ben who is walking his dog in the park.
- 3 Do the concepts of liberal individualism and personal autonomy carry more weight than collective or social responsibility? Should they?
- 4 In *Smith v Littlewoods* [1987], Lord Goff indicated that the legal treatment of omissions may one day need to be reconsidered. Was he correct?

If you would like to know what we think, check the **answer guidance** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-4-answers-to-end-of-chapter-questions?options=showName>>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

Here are some pointers to get you started:

- There are various claimants in this problem and various defendants. You should start by outlining who would claim against whom, and why.
- Margaret (her estate) will claim against Amir (and the supermarket vicariously, see **Chapter 20**). Though there is no general duty to assist someone in trouble, had Amir 'assumed responsibility' towards Margaret?
- Margaret will also claim against Kasim. The issues are similar to those against Amir, initially.
- ↩ Jill and Heather will claim against Margaret. However, the harm they suffered was the result of a third party's actions so it may be difficult to establish a duty.
- Levi will also claim against Margaret. Even if a duty can be established here there may be tricky causation points (see **Chapter 9**) and a potential defence to the claim (see **Chapter 10**).

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If you need some more guidance:

- See the **annotated version of the problem with issues and cases to consider** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-4-annotated-problem-question-interactive>>.
- Check your answer against the **suggested outline answer** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-4-answers-to-problem-question>>.

Further reading

Literature on this area of law tends to focus on reform, highlighting inconsistencies and inadequacies in the existing law. Claire McIvor's book is a great starting point from which to critique the law on third party liability, while Jeroen Kortmann provides excellent analysis of the principles of altruism and rescue in the context of English law. Chapter 3 of the book contains a particularly good and persuasive critique of Lord Hoffmann's reasoning/justifications in **Stovin v Wise**.

Carr, Nanci 'Am I My Brother's Keeper? How Technology Necessitates Reform of the Lack of Duty to Rescue or Duty to Report Laws in the United States' (2019) 2 Boston University Public Interest Law Journal 117

Conaghan, Joanne 'Challenging and Redressing Police Failures in the Context of Rape Investigations: The Civil Liability Route' (2015) 5(1) *feminists@law*

Kortmann, Jeroen *Altruism in Private Law: Liability for Nonfeasance and Negotiorum Gestio* (OUP 2005)

Linden, Allen 'Toward Tort Liability for Bad Samaritans' (2016) 53 *Alberta Law Review* 837

McIvor, Claire *Third Party Liability in Tort* (Hart 2006)

Morgan, Jonathan, 'Maintaining the Elegant Façade of the Acts–Omissions Distinction' [2022] *Cambridge Law Journal* 245

Randell, Melanie 'Sex Discrimination, Accountability of Public Authorities and the Public/Private Divide in Tort Law: An Analysis of *Doe v Metropolitan Toronto (Municipality) Commissioners of Police*' (2000–01) 26 *Queen's Law Journal* 451

Reid, Elspeth '*Smith v Littlewoods Organisation Ltd* (1985)' in Charles Mitchell and Paul Mitchell (eds) *Landmark Cases in the Law of Tort* (Hart 2010)

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-4-web-links?options=showName>>.

Notes

¹ *Donoghue* is outlined in **section 2.2**—see in particular the discussion of Lord Atkin’s ‘neighbour principle’.

² e.g. the Occupiers’ Liability Act 1957 fixes a positive duty on occupiers to ensure their premises are safe for lawful visitors (see **section 11.2.1**) and various statutory health and safety provisions impose positive duties on employers.

³ So, in our example scenario, no duty of care would be owed by the owner of the hire shop to do anything to assist the person in trouble. However, in light of later cases (e.g. the Canadian case *The Ogoogo* [1970]), a *contractual* relationship might now be enough to create a positive duty to act. See also *Stansbie v Troman* [1948] and *Bailey and another v HSS Alarms* [2000].

⁴ Allen Linden ‘Toward Tort Liability for Bad Samaritans’ (2016) 53 Alberta Law Review 837, 843. See also Nanci Carr ‘Am I My Brother’s Keeper? How Technology Necessitates Reform of the Law of Duty to Rescue or Duty to Report Laws in the United States’ (2019) 2 Boston Uni Public Interest Law Journal 117.

⁵ See e.g. *Carmarthenshire County Council v Lewis* [1955], where the duty of parents was confirmed in the context of a claim against a school. From *Carmarthenshire* it can be seen that a similar duty arises in respect of schools when children are in their care: see also *Barnes v Hampshire County Council* [1969] and ***Phelps v Hillingdon London Borough Council* [2001]**. This positive obligation also extends to ensuring children’s educational and psychological needs and interests are met (*Bradford-Smart v West Sussex County Council* [2002]).

⁶ Most recently confirmed at the highest level in ***Robinson v Chief Constable of West Yorkshire* [2018]**. See especially Lord Reed at [34].

⁷ The reference to being one’s brother’s keeper is biblical: God, after Cain had killed Abel, asked Cain where his brother was and Cain replied ‘Am I my brother’s keeper?’ (Genesis 4:9). The answer to Cain’s question differs according to one’s political and ethical standpoint. While some might answer ‘Yes, you are. WE are’—that is, we are all (and should be) responsible, at least to some extent, for the welfare of our fellow humans—others will respond differently, relying on conceptions of individual rather than collective responsibility to support the view that one should not have to expend time, energy or money on those who are not directly related (or proximate) to us in some way.

⁸ We can therefore infer that there would be no obligation in our example scenario for a bystander to take any measures to stop the man walking off the edge of the cliff, unless a pre-tort relationship existed between the parties. Nor must a doctor or nurse stop at the scene of an accident to help a stranger who might be injured or even dying (though see the Australian case *Lowns v Woods* [1996]). If they *did* stop and intervene, however, they may owe a duty not to make the situation worse. Simon Deakin, Angus Johnson and Basil Markesinis call this a ‘rather extreme position’, highlighting that the law fails to take into account either the magnitude of the harm that could be caused or the ease of preventing it (*Tort Law* (7th edn OUP 2012) 180).

⁹ The penalties apply to anyone who wilfully fails to offer assistance to a person in danger which he could himself provide without risk to himself or to third parties, or by initiating rescue operations. An example of this law in practice is where some press photographers at the scene of Princess Diana’s fatal car accident in Paris were investigated for deliberately avoiding providing assistance to endangered persons.

¹⁰ This is also the position that applies to the duty of care that the fire service or coastguard owe to individuals. See **sections 6.5.1 and 6.5.5**, respectively.

¹¹ See Linden **n4**.

- ¹² Note that in ***Robinson v Chief Constable of West Yorkshire Police* [2018]** Lord Reed lists *four* exceptions to the rule in modern understanding—though this aligns with the three we list here, by splitting the third into two (at [34]).
- ¹³ *Carmarthenshire County Council v Lewis* [1955], though note that this appears not to stretch beyond situations where an express or implied undertaking to care for the child exists and is not based merely on e.g. blood relationships. See also *Surtees v Kingston upon Thames Borough Council* [1992].
- ¹⁴ Notably, this case is also an exception to the general absence of duty owed by the police as a public body, discussed in **section 6.5.3**.
- ¹⁵ For an explanation of the principles of contributory negligence, see **section 10.4**.
- ¹⁶ The duty of state authorities to protect prisoners with mental health problems was confirmed in *Renolde v France* [2009].
- ¹⁷ The daughter of the woman who killed herself was later awarded £10,000 from the NHS in a Human Rights Act claim: *Anna Savage v South Essex Partnership NHS Trust* [2010]. In *Rabone v Pennine Care NHS Trust* [2010], the Court of Appeal denied such a claim where the patient was *voluntarily* receiving inpatient treatment for her mental health but, due to the hospital's negligence, was allowed on home leave, where she committed suicide. However, the Supreme Court overturned this, finding that the state has a positive obligation under Art 2 to prevent the suicide of voluntary mental patients and, though in *Rabone* the health trust admitted negligence and settled with the appellants (the patient's parents), this did not prevent them being recognised as 'victims' for the purposes of s 7 of the Human Rights Act 1998 (*Rabone and another v Pennine Care NHS Trust* [2012]).
- ¹⁸ Consider, e.g., the findings of the Office for National Statistics that male prisoners in England and Wales are 3.7 times more likely to die from suicide than the general population ('Drug related deaths and suicides in prison custody in England and Wales: 2008 to 2016' 25 July 2019). See also the Home Office report by Giles Lindon and Stephen Roe 'Deaths in police custody: A review of the international evidence' October 2017.
- ¹⁹ See also *Mullaney v Chief Constable of West Midlands* [2001]. These cases are examples of an exception to the general rule that the police owe no duty of care, as discussed in **Chapter 6**. See further on vicarious liability **Chapter 20**.
- ²⁰ See further **section 6.5.1**. A good summary of the rule from ***Capital & Counties plc*** was given by Lady Paton in a Scottish appeal case on liability of the fire service: *AJ Allan (Blairnyle) Ltd and another v Strathclyde Fire Board* [2016].
- ²¹ Discussed in more detail in **section 19.6**.
- ²² See e.g. ***Home Office v Dorset Yacht Co Ltd* [1970]**.
- ²³ **Section 9.2.3**.
- ²⁴ See *Smith v Littlewoods* [1987], as one example of a case that clearly highlights the difficulty courts have in categorising third party actions as either a duty or causation issue.
- ²⁵ Note there has been some criticism of Lord Reid's formulation—see e.g. Denning, Oliver and Watkins LJ in *Lamb v Camden London Borough Council* [1981].

- ²⁶ It should be clear from these categories where there is overlap between what is discussed here and in the earlier section on omissions. The first category, here, clearly has parallels with the idea of ‘assumption of responsibility’ in relation to omissions—and the others are even more obvious—so much so that you may find that other texts have some of the cases used to illustrate these ideas in the omissions section rather than in relation to third party liability and vice versa.
- ²⁷ The principle was confirmed in *Bailey and another v HSS Alarms* [2000] and more recently in a claim worth £6.5 million in *Rushbond Plc v JS Design Partnership LLP* [2021].
- ²⁸ *Al-Najar v The Cumberland Hotel (London) Ltd* [2019]. Interestingly, in giving judgment, Dingemans J said ‘I have found the duty to exist by reason of the assumption of responsibility test set out in **Robinson** rather than by the use of the **Caparo** test’ (at [187]), suggesting that the move away from seeing **Caparo** as ‘the’ test for duty of care is well underway (see discussion at **section 3.2**).
- ²⁹ Indeed, this point was explicitly acknowledged by Lord Denning MR in *Lamb v Camden London Borough Council* [1981], a case with similar facts to *P Perl (Exporters) Ltd*.
- ³⁰ It should be noted here that there was a far higher degree of proximity in **Osman** and **Michael** than in **Hill**, though still not enough for the court to impose a duty on the police (see further **section 6.5.3**).
- ³¹ Compare *Buck v Norfolk and Waveney Mental Health NHS Foundation Trust* [2012], where it was held that a custody authority responsible for the negligent release of a psychiatric patient will not owe a duty to a victim unless that victim was identifiable.
- ³² Also see Lord Morris in **Dorset Yacht**, who said: ‘If a person who in lawful custody has made a threat, accepted as seriously intended that, if he can escape, he will injure X ... a duty [will be owed] to X to take reasonable care to prevent escape’ (at 1039). Can parallels be drawn with those detained on mental health grounds? Compare the US case *Tarasoff v Regents of the University of California* [1976].
- ³³ Also see **Smith v Chief Constable of Sussex Police [2008]** and **Michael v Chief Constable of South Wales Police [2015]**.
- ³⁴ Also see *Hussain and another v Lancaster City Council* [1999] and *X & Y v London Borough of Hounslow* [2009]. The latter case is discussed in **sections 2.6** and **6.7.2**. The Court of Appeal decision relied heavily on the findings in *Mitchell*.
- ³⁵ Discussed in **section 6.3**.
- ³⁶ Which specifically stated that there might be circumstances in which confidential information might need to be disclosed without a patient’s consent if the health or safety of a professional was at risk.
- ³⁷ See Joanne Conaghan ‘Civil liability: addressing failures in the context of rape, domestic and sexual abuse’ Inaugural Lecture given at the University of Bristol on 19 February 2015. The full lecture can be viewed at www.youtube.com/watch?v=y1bawCpPr30 <<http://www.youtube.com/watch?v=y1bawCpPr30>>.
- ³⁸ Also see Martin Evans ‘Woman was murdered by stalker ex-boyfriend after police blunders, report finds’ *The Telegraph* 12 September 2018. There, the Independent Office for Police Conduct (IOPC) found multiple failures in the police response to the victim’s reporting of worrying stalking behaviour by her ex-boyfriend. Contrast the response of

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Warwickshire police to the death of Julia Mendes, also following a miscategorised 999 call, where it could be argued that no such assumption of responsibility occurred, yet the victim's family were paid £21,687. See Diane Taylor 'Police apologise to dead woman's kin after failure to respond to 999 call' *The Guardian* 5 January 2017.

³⁹ See also *Griffiths and others v Suffolk Police and another* [2018].

⁴⁰ Also see *Vowles v Evans and another* [2003] and *Watson v British Boxing Board of Control Ltd* [2001] in the context of sports officials.

⁴¹ Consider also the High Court's decision (later upheld by the Supreme Court) in *DSD v The Commissioner of Police for the Metropolis* [2014], discussed at **section 6.3.1** as well as in the lecture by Joanne Conaghan, referred to in **n37**.

⁴² Would the same be true where a cleaner left the door to a pub open one night (as in the scenario at the beginning of the chapter)? The legal question is whether she should be held responsible for the damage to the pub and, also, for the damage to the car parked on the same street. By analogy with *Stansbie* it might be fairly easy to establish the duty in relation to the stolen alcohol and damaged pub—but might *Topp* stand in the way of the car owner claiming successfully?

⁴³ See, in the context of land torts, ***Sedleigh-Denfield v O'Callaghan* [1940]**, *Goldman v Hargrave* [1967] and *Leakey v National Trust* [1980], **section 19.6.1**. Also compare the position of occupiers of premises under the Occupiers' Liability statutes (**Chapter 11**).

⁴⁴ Notably, although *Smith v Littlewoods* was a unanimous decision, each of the law lords reached their decision by different means.

⁴⁵ Compare also Smith LJ's judgment in the context of a knife attack in a nightclub in *Everett v Comojo (UK) Ltd (t/a The Metropolitan)* [2011], particularly [31]–[33].

⁴⁶ Compare e.g. *Lamb v Camden London Borough Council* [1981] (third party's acts too remote a consequence of the defendant's breach (causation in law)), *P Perl (Exporters) Ltd* (no duty because the defendant could not be expected to control the actions of third parties) and *King v Liverpool City Council* [1986] (duty found but defendant not in breach as there was nothing they could reasonably have done to prevent the third parties' actions).

⁴⁷ Claire Mclvor *Third Party Liability in Tort* (Hart 2006) 1.

⁴⁸ *ibid.*

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